

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 07/08/2026

Court Room Rules and Notices

If the tentative rulings below are for a past date, please try the following to force a refresh of this page:

For a Windows-based computer, press "Cntrl" + "Shift" + "R" at the same time.

For an Apple computer, press "Cmd" + "Shift" + "R" at the same time.

#	Case Name	Tentative
1	Yale – Trust; 30-2023-01359872	Motion to Compel
2	Shaw – Trust; 30-2024-01390550	Demurrer Amber Cherie Shaw and Cynthia Tracy Shaw (Respondents) demur to the Verified Amend Cross Petition (Petition) filed on 2/26/26 (ROA 479) by Petitioners Maureen Mary Shaw, Angela Shaw, Eastkings LLC, Eastsilvers LLC, Riverton Kiwi LLC, and Scarba Kiwi LLC (Petitioners). A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading, which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) Courts "'treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed." (<i>Id.</i>) On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-967.) On demurrer, a complaint must be liberally construed. (Code Civ. Proc. § 452; <i>Stevens v. Superior Court</i> (1999)

75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.)

DEMURRER ON THE BASIS OF THE STATUTE OF LIMITATIONS

Code of Civil Procedure section 366.2 (Section 366.2) provides that, if a person against whom an action may be brought dies, "an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply." (Section 366.2.) The statute applies to all claims arising from the decedent's liability, whether based in contract, tort, or otherwise. Because this action arose when the decedent deprived the petitioner of her community property through threats of violence, Section 366.2 applies. The cause of action at issue does not fall under any of the exceptions of Section 366.2

However, the relation back doctrine applies. An amended pleading relates back to the original pleading if it: (1) rest on the same general facts, (2) involves the same injury; (3) refers to the same instrumentality. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383.) The statute of limitations begins to run on the date on which the original complaint is filed even if the complaint is subsequently amended. Although an amended complaint supersedes the original complaint, the time of filing the original complaint is still the date of commencement of the action for purposes of the statute of limitations. (*Save Lafayette Trees v East Bay Reg'l Park Dist.* (2021) 66 Cal.App.5th 21, 35.)

Both the original petition and the amended petition were filed by the same petitioner and allege the same injury, i.e., being deprived of her share of community property, through the same deeds. The original petition was filed and accepted within the one-year deadline imposed by Section 366.2. Because the relation back doctrine applies, the claim is not time-barred and the demurrer on the basis of the statute of limitations is **OVERRULED.**

DEMURRER ON THE OF FAILURE TO ALLEGE

SUFFICIENT FACTS

“[A] plaintiff is required only to set forth the essential facts of his case with reasonable precision and with sufficient particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. . . . The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff. [Citation.]” . . . There is no need to require specificity in the pleadings because “modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.” (Doheny Park Terrace HOA v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1098–1099.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872).

Under California’s pleading standards, the allegations of the first cause of action are sufficient to state a claim and the demurrer to that cause of action is

OVERRULED on the ground of failure to state sufficient facts.

DEMURRER ON THE BASIS OF UNCERTAINTY

Uncertainty is a disfavored grounds for demurrers because “ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty should be “granted only if the pleadings is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695, internal quotes omitted.) The claims asserted in the Petition are not incomprehensible and the demurrer on the ground of uncertainty is **OVERRULED**.

DEMURRER ON THE BASIS OF FAILURE TO PROPERLY SEGREGATE TRUST AND PROBATE MATTERS

		Respondents demur to the cross-petition on the ground it fails to “properly segregate Trust and Probate matters in violation of the Court’s Order.” They argue because the community properties are trust properties and not part of the probate estate, the claim for recovery of community property can only be brought as a trust claim. They also argue Family Code section 1101(b) permits an accounting in marital property disputes but does not provide grounds for an independent cause of action. Even presuming such arguments could support a demurrer, they do not stand at this pleading stage. Family Code section 1101(b) reads, in full: “A court may order an accounting of the property and obligations of the parties to a marriage and may determine the rights of ownership in, the beneficial enjoyment of, or access to, community property, and the classification of all property of the parties to a marriage.” It does not include a limitation on the type of action in which an accounting can be sought. Further, Family Code section 1101(c) authorizes a court to order “that the title of community property held in some other title form shall be reformed to reflect its community character.” As was the case with subsection (b), subsection (c) gives this court power to reform the title of the properties at issue in this proceeding. The accounting claim is sufficiently stated at this pleading stage and the demurrer on the ground that the petition fails to properly segregate trust and probate matters is OVERRULED. Petitioner is ordered to serve notice of ruling on this Demurrer.
6	Torres – Trust; 30-2025-01515898	Motion for Protective Order Petitioner Melanie Martinez’s Emergency Motion for Protective Order Prohibiting Dissipation of Trust Assets Pending Hearing on First Amended Petition (ROA 11) is DENIED.